



**IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD**

CIVIL REVISION APPLICATION NO. 135 OF 2013

Kamar Ali Shah Mahboob Ali Shah
and another .. Applicants

Versus

The Secretary, the Nutan Education
Society and others .. Respondents

Shri V. D. Sapkal, Senior Advocate, i/by Shri S. H. Khan,
Advocate for the Applicants.

Shri A. S. Deshmukh, Advocate for the Respondent No. No. 1.

Shri S. S. Rathi, Advocate for the Respondent No. 2.

Shri N. E. Deshmukh, Advocate for the Respondent No. 4.

**WITH
CIVIL REVISION APPLICATION NO. 95 OF 2018**

Hanuman Vyayam Shala, Parbhani
Through its Trustee Anant Kishanrao
Umrikar .. Applicant

Versus

Kamar Ali Shah Mahboob Ali Shah
and others .. Respondents

Shri Swanil S. Rathi, Advocate for the Applicant.

Mrs. A. N. Ansari, Advocate for the Respondent Nos. 2/1 to 2/7.

Shri N. E. Deshmukh, Advocate for the Respondent No. 5.

**WITH
CIVIL REVISION APPLICATION NO. 90 OF 2013**

The Nutan Education Society, Parbhani .. Applicant

Versus

Kamar Ali Shah Mahboob Ali Shah
and others

.. Respondents

Shri A. S. Deshmukh, Advocate for the Applicant.
Shri V. D. Sapkal, Senior Advocate i/by Shri S. H. Khan,
Advocate for the Respondent No. No. 1, 2/A to 2/G.
Shri N. E. Deshmukh, Advocate for the Respondent No. 4.

WITH**CIVIL REVISION APPLICATION NO. 136 OF 2017**

The State of Maharashtra, through the
Collector, Parbhani and another

.. Applicants

Versus

Kamar Ali Shah Mahboob Ali Shah
and others

.. Respondents

Shri S. N. Morampalle, A. G. P. for the Applicants.
Shri V. D. Sapkal, Senior Advocate i/by Shri S. H. Khan,
Advocate for the Respondent No. No. 1, 2/1 to 2/7.
Shri N. E. Deshmukh, Advocate for the Respondent No. 4.

WITH**CIVIL REVISION APPLICATION NO. 158 OF 2013**

The Secretary, Model Education Society .. Applicant

Versus

Kamar Ali Shah Mahboob Ali Shah
and others

.. Respondents

Shri Joslyn Menezes, Advocate h/f Shri Prakash S. Paranjape,
Advocate for the Applicant.
Shri V. D. Sapkal, Senior Advocate i/by Shri S. H. Khan,

Advocate for the Respondent No. No. 1, 2/A to 2/G.
 Shri S. N. Morampalle, A.G.P. for the Respondent No. 4.
 Shri N. E. Deshmukh, Advocate for the Respondent No. 5.

**WITH
 CIVIL REVISION APPLICATION NO. 246 OF 2013**

The Executive Engineer, Maharashtra
 State Electricity Board, Parbhani .. Applicants

Versus

Kamar Ali Shah Mahboob Ali Shah
 and others .. Respondents

Shri Avishkar S. Shelke, Advocate for the Applicant.
 Shri V. D. Sapkal, Senior Advocate i/by Shri S. H. Khan,
 Advocate for the Respondent No. No. 1, 2/A to 2/G.
 Shri Swapnil S. Rathi, Advocate for the Respondent No. 3.
 Shri S. N. Morampalle, A.G.P. for the Respondent No. 4.
 Shri N. E. Deshmukh, Advocate for the Respondent No. 5.

CORAM : SHAILESH P. BRAHME, J.

CLOSED FOR ORDER ON : 12.03.2026
ORDER PRONOUNCED ON : 07.04.2026

FINAL ORDER :

. With the consent of the learned counsel of both sides taken up for final disposal. Heard litigating sides at length. Their written notes of submissions and compilations of the relevant documents are taken into account.

2. The distinct judgment and orders passed by the Waqf Tribunal, Aurangabad are question in these revision applications

filed by the original plaintiffs. The material adduced by the parties is common in all the proceedings. The controversy which this Court has crystalized in points for consideration is common. Hence revisions are decided by common judgment. The paper book of Civil Revision Application No. 135 of 2013 is referred. The revision petitioners are the original plaintiffs. The respondents are the original defendants. They are referred to by their original status in the suit.

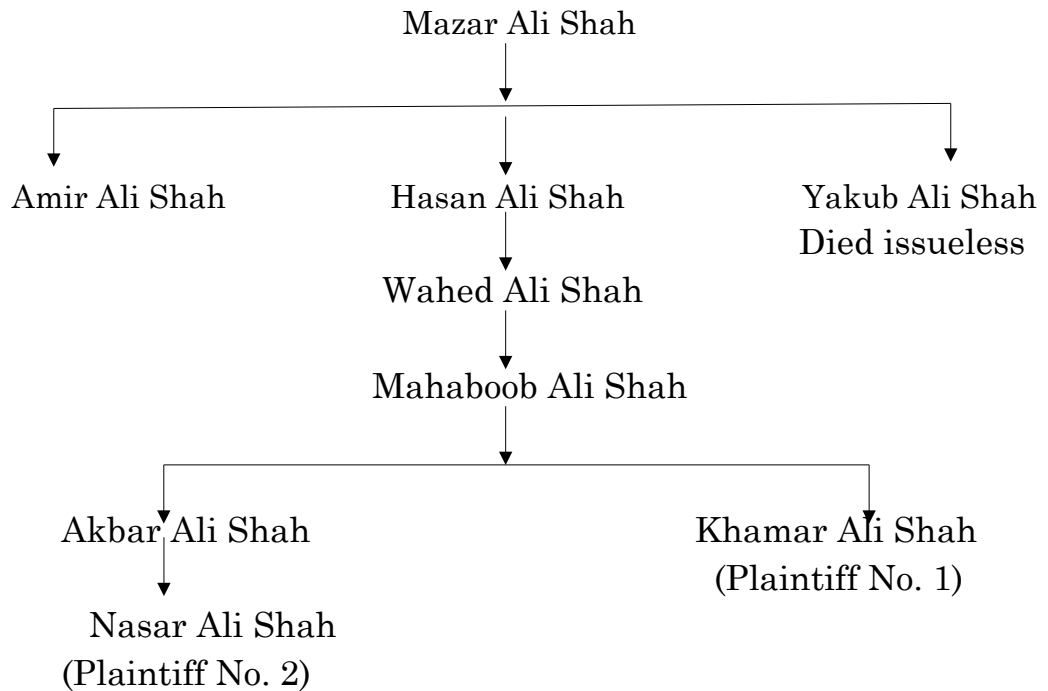
3. For the sake of convenience and to understand the nature of dispute at a glance a chart is produced hereinbelow :

Sr. No.	C. R. A. No.	Waqf Suit No.	Relief Claimed	Impugned judgment	Area used for.
1	135 of 2013	23 of 2004	Recovery of possession & perpetual injunction	Suit is dismissed on 29.01.2013	04 Acre 08 Guntha Nutan Education Society (Sy. No. 636)
2	90 of 2013	69 of 2011	Perpetual injunction	Suit decreed is on 23.11.2012	11 Acre 16 Guntha Education society (Sy. No. 636)
3	246 of 2013	24 of 2004	Recovery of possession & perpetual injunction	Suit is partly decreed on 25.03.2013	01 Acre 31 Guntha M.S.E.B. (Sy. No. 636)
4	95 of 2018	43 of 2008	Recovery of possession & perpetual injunction	Suit is decreed on 31.08.2015	0H 39 guntha (42699 Sq. ft.) Hanuman Vyayam Shala (Sy. No. 636)
5	136 of 2017	25 of 2004	Recovery of possession &	Suit is decreed on 31.08.2015	10 Acre 05 Guntha Civil Hospital (Sy.

			perpetual injunction		No. 637)
6	158 of 2013	22 of 2004	Suit is decreed on 31.08.2015	Suit is decreed on 27.02.2013	01 Acre 11 Gunthas Model Education School (Sy. No. 636)

4. The subject matter in the revisions is land survey Nos. 636 admeasuring 24 Acres 12 Guntha and 637 admeasuring 2 Acre 07 Guntha situated at Parbhani, Tq. and Dist. Parbhani. The defendants in respective suits are occupying part of it illegally as shown in table. The plaintiffs are soliciting possession of the encroached portion. There is further reference of Sy. No. 435 and 635, albeit, no specific claims are made for the lands. Sy. Nos. 636 and 637 are claimed to be Mashrutul Khidmat Inam lands and properties of a waqf namely Dargah Hazrat Burhan Ali Shah. Dargah Burhan Shah Wali is also stated to be one of the registered waqf. There is also reference of waqf Kabrastan and Eidgah. Parties have rival claims about the suit lands and religious institutions referred above.

5. The plaintiffs are claiming to be the persons having interest in waqf Dargah Hazrat Burhan Ali Shah. They are claiming to be mutawali by inheritance. In the plaint of R.C.S. No. 23 of 2004 following genealogy is incorporated :



6. Plaintiffs are soliciting the relief of possession and perpetual injunction in respect of the area shown in table of Sy. No. 636 in most of the cases. Only in Waqf Suit No. 69 of 2011, the solitary prayer of perpetual injunction is made. It is contended by them that land Sy. Nos. 636 and 637 are inam lands dedicated to Dargah Hazrat Burhan Ali Shah. They claim to be descendants of original Muntaqab holder Amir Ali Shah as shown in genealogy. It is stated that the title and possession is corroborated by Namuna Patrak, revenue record, notification in the Government Gazzette dated 02.05.1974, etc. The defendants are stated to have encroached upon Sy. No. 636 illegally. Without following the procedure of acquisition the defendants – State or local body is stated to have obtained the possession. The suits lands are service inam lands and unalienable.

7. It is further contended by the plaintiffs that the encroached portion is shown to have been allotted to the defendant educational institution, hospital, gymnasium, M.S.E.B. and Municipal Council, illegally. Due to the encroachments and grabbing of the land by the defendants, only 07 Acres land is stated to have remained in possession of the plaintiffs, where Dargah, Kabrastan and the Eidgah are located. It is further contended that the suit lands are waqf properties and from time to time the defendants and people of Muslim community are being permitted to occupy the land for offering prayers and other purposes. In this premise the suits were filed.

8. The suits are contested by the defendants by filing written statements. The claim regarding mutawaliship of the plaintiffs and their locus to file suit is challenged. The suit lands are denied to be waqf properties especially that of Dargah Hazrat Burhan Ali Shah. It is denied that the plaintiffs and their ancestors are muntaqab holders. It is stated that plaintiffs are not armed with any succession certificate issued by competent authority. The location of Dargah, Eidgah and Kabrastan is disputed.

9. It is contended that the defendants are in lawful possession of the lands since number of years which were allotted to them. The defendants are stated to have developed lands by raising construction of school building, offices, hospital, gymnasium, etc. by securing permission of the competent authorities. It is also

pleaded that suit land was property of Baldiyar and then it was allotted to other defendants. The plea of limitation and adverse possession are taken in the suit, where the relief of possession is solicited.

10. The defendant waqf board supported the plaintiffs and prayed to dismiss the suits.

11. Parties have led their oral and documentary evidence in the suits separately. They stepped into witness box and offered themselves for cross examination. Parties have relied upon following documentary evidence predominantly, which are given different exhibit numbers :

- A. Nanuman patrak,
- B. Succession certificate / judgment.
- C. Notification in the government gazette dated 02.05.1974.
- D. Muntaqab Tamil Nishani No. 24583.
- E. Hakka Nondani Patrak.
- F. Revenue record.
- G. Information supplied under the Right to Information Act.
- H. Services rendering certificates of the plaintiffs.
- I. No objection certificate given to the plaintiffs.
- J. Resolution passed by the municipal council.
- K. Registration certificate along with orders and annexures issued by the waqf board.
- L. Allotment letter.

M. Government Gazzette dated 02.05.1974 bearing entry No. 122.

N. Correspondence from the offices of the local body.

12. Parties have also relied on judgments passed in Waqf Suit No. 33 of 2010 and common judgment dated 09th December, 2015 passed in Civil Revision Application No. 99 of 2012 and Civil Revision Application No. 18 of 2013 by the Coordinate Bench.

13. The Tribunal dismissed Waqf Suit No. 23 of 2004, which was filed for possession and perpetual injunction only on the ground of limitation, but the substantive findings have not been recorded in favour of the plaintiffs on remaining issues. In respect of remaining suits the Tribunal passed the decree of either injunction or possession with injunction. Those judgments of the Tribunal are subjected to challenge in the present revisions.

14. Learned senior counsel Mr. V. D. Sapkal appearing for the plaintiffs canvassed following submissions :

- I Plaintiffs have locus to prosecute the suit in the capacity of muntaqab holder, mutawalis and persons having interest in the waqf properties.
- II The suit lands are service inam lands and properties of the waqf Dargah Hazrat Burhan Ali Shah. Those are inalienable.

- III The revenue record, namuna patrak, khasara patrak and information supplied under the Right to Information Act corroborate the claim.
- IV Dargah Hazrat Burhan Ali Shah and Dargah Burhan Shah Wali are the same and the minor discrepancies in the name is inconsequential and stood corrected by judgment passed by the Coordinate Bench in C. R. A. No. 99 of 2012.
- V The submissions of the defendants disputing the title on the ground that suit lands are being shown for preparation of other waqf institutions is without any pleading and raised for the first time.
- VI Land Sy. No. 635 is not related to the controversy in question and confusion is tried to be created by the defendants.
- VII Neither the defendant – State or its officers, nor the local body could allot the parcels of the suit land to the different defendants. The defendants are encroachers and liable to be evicted.
- VIII The defendant – Waqf Board supported the claim of the plaintiffs. As against that the defendant – State or defendant – Municipal Council did not adduce the evidence to show valid allotment of the parcels of the suit land.

IX The findings on the ground of limitation in Waqf Suit No. 23 of 2004 are perverse. The plea of adverse possession by the defendants is misconceived.

15. Learned advocate Mr. Arvind Deshmukh appearing for the defendant – Nutan Education Society formulated his submissions which are adopted by other private defendants in following manner :

- A. Plaintiffs are neither mutaqab holders, nor mutawalis of the waqf Dargah Hazrat Burhan Ali Shah. There is no pronouncement by the competent forum or any succession certificate issued in their faovur.
- B. Plaintiffs have failed to prove that the suit lands are waqf properties of Dargah Hazrat Burhan Ali Shah and the said Dargah is registered waqf.
- C. The suit lands are shown to be the properties of Dargah Burhan Shah Wali, which is registered one and distinct than the one claimed by plaintiffs.
- D. Plaintiffs failed to identify the suit lands, registered waqf amongst three different waqf institutions and their entitlement to claim relief.
- E. The defendant was allotted 11 acres of land by the municipal council by passing resolution and it carried out

construction and running recognized schools. The possession is lawful.

- F. Neither the judgment rendered in Waqf Suit No. 33 of 2010, nor the judgment of Coordinate Bench dated 09.12.2015 in C. R. A. No. 99 of 2012 is binding upon the defendants. Issues involved in the present matter were not germane in those proceedings.
 - G. The decrees passed by the Tribunal are patently illegal and perverse which would upset long standing possession and structures of the defendants, except decree passed in Waqf Suit No. 23 of 2004.
16. In addition to above submissions, following submissions are advanced by the learned counsel for the respective defendants.
- a. The defendant in Civil Revision Application No. 95 of 2018 is in lawful possession of 39.5R of land and running a gymnasium, which is allotted by the municipal council in the year 1973.
 - b. The defendants in Civil Revision Application No. 246 of 2013 have been allotted 613.2 square meters portion from land Sy. No. 636 through sanad. The defendant – Municipal Council had issued kabala on 21.01.1958 in favour of the M. S. E. B. The title is perfected by adverse

possession.

17. Learned Assistant Government Pleaders Mr. Hange and Mr. Jahagirdar appearing for the defendant – State advanced following submissions :

- i) The land was allotted to Civil Hospital in the year 1960. The long standing possession cannot be disturbed.
- ii) No succession certificate has been issued in favour of the plaintiffs, rather the claim for certificate is pending before the competent authority.
- iii) The defendant – board is competent to decide the status of the waqf and the properties, failed to take any decision.
- iv) The suits are liable to be dismissed for want of identification of the suit lands and the status of the waqf institution.

18. Having considered rival submissions of the parties, I propose to crystallize the following points for determination :

- (1) Do the plaintiffs prove that they are Mutawallis of Dargah Hazrat Burhan Ali Shah and have locus to file suit ?
- (2) Do the plaintiffs prove that land Sy. Nos. 636 and 637 are waqf properties of Dargah Hazrat Burhan Ali Shah ?

- (3) Do the defendants prove that Dargah Hajart Burhan Ali Shah and Dargah Burhan Shah Wali are distinct waqf institutions ?
- (4) Do the plaintiffs prove that respective defendants are encorachers on part of the lands belonging to waq institution and plaintiffs are entitled to relief claimed in suit ?
- (5) Do the respective defendants prove that they are lawfully in possession of the lands allotted to them ?
- (6) Whether Waqf Suit No. 23 of 2004 is barred by limitation ?

19. Point No. (1) :

Plaintiffs have instituted the suits for the relief of possession and perpetual injunction in the capacity of mutawali by inheritance and as the persons interested in the waqfs. They are Muslims. They are descendants of original muntaqab holder Mazar Ali Shah. Plaintiff No. 2 Naser Ali has applied for virasat after death of his father. His claim is pending before the competent authorities. In that view of the matter I find that they have locus to institute the suits.

20. The claim of the plaintiffs based upon lastly issued muntaqab document and mutawaliship is disputed by the defendants. Muntaqab Tamil Nishani No. 24583 was issued in the name of Amir Ali Shah for rendering services to Dargah Hazrat Burhan Ali Shah in the year 1301 Fasli (1841 AD). After his death, virasat was issued in the name of Wahed Ali, followed by Maheboob Ali and Akbar Ali. The competent authority,

District Collector issued the virasat to Akbar Ali on or before 19.01.1950. Thereafter there is no document to show that virasat has been issued to either of the plaintiffs by tangible order.

21. Plaintiffs have not produced on record any documents to show that any muntaqab was issued in their name or any virasat is issued in their name by the orders of the competent authority. The plaintiff No. 2 applied for succession on 24.04.2000 after death of his father on 04.04.1984. The defendant waqf – board is empowered to appoint mutawali U/Sec. 32(2)(g) of the Waqf Act, 1995. No such proceeding has been undertaken by either of the plaintiffs. The waqf board also could have appointed mutawali *suo motu*, but no endeavour has been made. Therefore, I am of the considered view that none of the plaintiffs are mutawalies *de-jure*. The findings recorded by the Tribunal in the impugned judgment of Waqf Suit No. 23 of 2004 is unfounded.

22. Plaintiffs are prosecuting the suit in the capacity of the persons having interest in the waqf by implication of definition U/Sec. 3(i) of the Waqf Act. They are looking after the properties of the waqf. There is no difficulty in treating them *de-facto* mutawalies subject to decision of their claim before the competent authority in this regard. They cannot be non suited on this count. I, therefore, answer point No. (1) partly in their favour holding that they have locus to file the suit, but they are not lawfully declared mutawalies of Dargah Hazrat Burhan Ali

Shah.

23. Point No. (2) :

Muntaqab No. 24583, which is the latest document pertains to Dargah Hazrat Burhan Ali Shah issued in favour of Amir Ali Shah. Thereafter virasats are issued in the name of ancestors of the applicants – plaintiffs. Plaintiffs have placed heavy reliance on notification and the list in the Government Gazette of 02.05.1974 to bolster that suit lands are the properties of the registered waqf. A careful perusal of entry No. 18 discloses the name of the waqf as Dargah Burhan Shah Wali area 55 x 50 square feet referring the Muntaqab No. 24583 of 1301 Fasli. In column No. 8 name of mutawali is stated to be late Amir Ali Shah S/o Mazar Ali Shah. In column No. 10 land Sy. No. 636 admeasuring 20 Acres and 12 Guntha and 637 admeasuring 02 Acres 19 Guntha are mentioned. Interestingly in column No. 19 it is stated that Dargah is situated in Sy. No. 435. Firstly it does not refer to Dargah Hazrat Burhan Ali Shah. Secondly it shows that Dargah is situated in land Sy. No. 435. Thirdly land Sy. No. 435 cannot be said to be the property of waqf. It is not the case of the plaintiffs in any of the suits that Dargah Burhan Shah Wali and Dargah Hazrat Burhan Ali Shah are one and the same and its properties are land Sy. Nos. 636 and 637. Gazetted entry No. 18 does not refer either Eidgah or Kabrastan. This document is incompatible with the plaintiffs claim.

24. Plaintiffs have not produced on record gazetted entry of

Dargah Hazrat Burhan Ali Shah. Inam patrak of form No. IX pertains to Dargah Hazrat Burhan Ali Shah referring to muntaqab issued to Maheboob Ali Shah. It further refers to Sy. No. 636 and 637. It refers to issuance of virasat in the name of Maheboob Ali Shah. This document of 1956 is silent regarding Eidgah and Kabrastan. The revenue record of hakka nondani patrak also shows the suit lands of Dargah Hazrat Burhan Ali Shah. The lands are shown to be inam lands. The information supplied to the plaintiffs under the R. T. I. only refers to Burhan Ali Shah Dargah. The spot inspection conducted by the competent authority also refers to Dargah Hazrat Burhan Ali Shah. The defendant – board which supports the claim of the plaintiffs also does not come forward to show that Dargah Hazrat Burhan Ali Shah is registered as a waqf. I am of the considered view that what is registered as waqf is Dargah Burhan Shah Wali and not Dargah Hazrat Burhan Ali Shah.

25. A registration certificate dated 30.03.2010 discloses that Dargah Burhan Shah Wali was registered U/Sec. 36 of the Waqf Act with the defendant – Waqf Board bearing registration No. MSBW/PBN/37 of 2009. Its an independent entity having the suit lands and Dargah only, which is corroborated by the order passed U/Sec. 36(3) of the Waqf Act by the Chief Officer of the Board. Its annexure refers that land Sy. No. 636 admeasuring 8H 21R and Sy. No. 637 admeasuring 0H 99R are the properties. Plaintiffs did not produce any order of the Waqf Officer passed U/Sec. 36(3) of the Waqf Act and its annexures in respect of

Dargah Hazrat Burhan Ali Shah.

26. Plaintiffs have claimed in Waqf Suit No. 33 of 2010 filed for perpetual injunction against Mohammad Abdul Gaffar and others that Dargah, Kabrastan and Eidgah are the properties of Dargah Hazrat Burhan Ali Shah. The Tribunal vide judgment dated 29.12.2011 decreed the suit which was confirmed in revision by the High Court. The extract of the Government Gazette dated 02.05.1974 showing entry No. 122 is produced at Exhibit R – 5 in Civil Revision Application No. 20 of 2013. Kabrastan and Eidgah occupying 380 x 150 feet at Parbhani is registered waqf. Muslim panch managing committee is mentioned in column No. 8 as persons looking after the property. It is held by the Tribunal in that judgment that Dargah and Kabrastan are situated in land Sy. No. 636. If that is so gazetted entries must reflect Eidgah and Kabrastan as the properties.

27. The registration certificate dated 22.01.2010 issued by the defendant board shows Kabrastan and Eidgah at Parbhani is registered as waqf U/Sec. 36 of the Waqf Act bearing No. MSBW/PBN/28/2010 which is corroborated by order passed by the officer and the annexure. Kabrastan and Eidgah cannot be said to be properties of Dargah Hazrat Burhan Ali Shah, but they have independent existence. This aspect of the matter has not been brought to the notice of the Tribunal in Waqf Suit No. 33 of 2010. Plaintiffs and the waqf board are unable to explain the anomaly as to whether Kabrastan and Eidgah are the

properties of either registered Dargah Burhan Shah Wali or unregistered Dargah Hazrat Burhan Ali Shah.

28. It is not out of context to mention that the defendant – board is an independent statutory body, which is armed with adequate powers and the functions to safeguard the interest of the waqf institution. It is empowered to determine as to whether a particular property is a waqf property or not or an institution is waqf or not. No endeavour has been made by the defendant – board either to identify the properties involved in the litigation or to recognize the institutions involved in the litigation. In such a situation the board has committed grave dereliction of its duties.

29. Plaintiffs did not take any steps against entries at Sr. No. 18 or 122 of Gazette dated 02.05.1974. They claimed to be the persons having interest in the waqf. Then they also could have filed application U/Sec. 6 of the Waqf Act for the rectification of the entries so as to correct the name of the waqf as well as to incorporate the properties. In the absence of any such exercise, merely contending that both the institutions are same is not sufficient. I can not approve the findings recorded by the Tribunal in this regard. I find that the plaintiffs have failed to make out a case that land Sy. Nos. 636 and 637 are the waqf properties of Dargah Hazrat Burhan Ali Shah.

30. Point No. (3) :

Learned senior counsel Mr. V. D. Sapkal strongly opposed the submissions of learned advocate Mr. Arvind Deshmukh that Dargah Hazrat Burhan Ali Shah and Dargah Burhan Shah Wali are separate institutions and out of them only Dargah Burhan Shah Wali is registered as a waqf under the Gazette. It is tried to be impressed that the submissions are without pleadings and cannot be considered for the first time in the High Court. I have gone through written statement of the defendant – Nutan Education Society filed in Waqf Suit No. 69 of 2011. It has taken very specific stand in para Nos. 2 and 3 contending that the waqf institution claimed by the plaintiffs has not been registered and the suit lands are not properties of the waqf. It is further contended that suit is not maintainable in view of Sec. 87 of the Waqf Act. Considering the stand, the issues have been framed in all the suits as to whether land Sy. Nos. 636 and 637 are waqf properties. It cannot be said that the objection raised by the defendant in respect of existence of more than one institutions would surprise the plaintiffs. The submissions of the defendants that Dargah Burhan Shah Wali is only registered waqf and it is distinct need to be entertained.

31. Learned senior counsel adverted my attention to the findings recorded by the Coordinate Bench in judgment dated 09.12.2015 in Civil Revision Application No. 99 of 2012. In that case the judgment dated 29.12.2011 passed in Waqf Suit No. 33 of 2010 and order passed in Waqf Application No. 37 of 2010 are

challenged. Present defendants were not the parties. Only defendant – waqf board was the party in those proceedings. Waqf Suit No. 33 of 2010 was filed by present plaintiffs for perpetual injunction. Present facts in issue as to whether land Sy. Nos. 636 and 637 are waqf properties or not and as to whether those are the properties of registered waqf Dargah Burhan Shah Wali were not germane. The registration of Eidgah and Kabrastan of which Sy. No. 636 was a property is under consideration. Therefore, the decision rendered by coordinate bench would not bind the defendants. It cannot be said that the documents which are pressed into service in the present matters were also before the High Court.

32. I have carefully gone through the judgment dated 09th December, 2015 passed by the Coordinate Bench. It is vehemently contended by the learned senior counsel that in view of the observations recorded therein the discrepancies of the name of the waqf stands obliterated. The relevant extracts are produced as follows :

“11. For getting the relief of injunction which the plaintiffs wanted particularly as against defendant Nos.1 to 13, it was necessary for the plaintiffs to show that they have better title. This Court has gone through the record which consists of Muntaqab statement of the year 1301 Fasli (1891 A.D.). It shows that in that year one Amir Ali Shah S/o Mazhar Ali Shah was shown as Muntaqab holder of the Dargah of Parbhani. Name of the Dargah was, however, not mentioned in the statement. The remaining record of the inquiry conducted at the relevant time, however, shows that inquiry was conducted in respect of Wahed Ali Shah Dargah. It appears that there is some mistake in the name of Dargah

mentioned in that statement recorded during the inquiry. The name of the Muntaqab holder was Wahid Ali Shah S/o Hasan Ali Shah and Mir Ali had claimed succession. Then, there is record to show that even in the Atiyat Inquiry in the year 1944 the names of plaintiffs were entered as successors of aforesaid Muntaqab holder. The learned counsel for the Petitioners of Revision No.99 of 2012 submitted that this record is prepared by Tahsil office and so this record can be of no use as the officer of the rank of Deputy Collector can make inquiry under Atiyat Inquiry Act. Learned counsel for the plaintiffs submitted that at the relevant time Atiyat Act was not in existence and so the revenue authority was making inquiry. Even if this record of succession is ignored, it can be said that there is record to show that plaintiffs are successors of the original Inamdar to whom the land was given for rendering services to Dargah. When there is record of 1974 showing that Dargah Burhan Shah Wali was the owner of Survey No.636 and 637, it appears that the structure of this Dargah was shown on Survey No.435 when there is one more Dargah shown in the same list in survey No.435. Admittedly, there is one structure of Dargah on Survey No.636. Both plaintiffs and defendants Nos.1 to 13 are not disputing that these two structure belong to Dargah Burhan Shah Wali. In view of this circumstance, the discrepancy can be ignored safely. In the list of Wakf properties published in the year 1974 graveyard and Idgah were shown at serial No.122 and one Muslim managing committee was shown to be managing this property. Against this entry, there is no mention of particular survey number and there is note that the land around Dargah was in possession of Municipality. The Tribunal has rightly held that the defendant Nos. 1 to 13 cannot claim to be successors of the aforesaid managing committee if at all such managing committee was there in respect of Idgah. There is no record whatsoever with defendant Nos.1 to 13 to show that such managing committee was in existence and due to its registration and constitution they are entitled to claim as managing committee of Idgah and graveyard.”

33. It has been expressly recorded that no relief of declaration was solicited in those proceedings and the inquiry pertains to injunction only. It is cursorily observed that there is some

mistake in the name of Dargah. No reasons are assigned as to whether there was one or more religious institutions having statutory existence. The decision is not having any binding effect. I am unable to concur with the submissions of the plaintiffs that the coordinate bench has settled the controversy in that matter. It cannot be countenanced that due to the decision of the coordinate bench the registration of either Dargah Burhan Shah Wali or Kabrastan or Eidgah stand cancelled. I find that Dargah Hazrat Burhan Ali Shah, Dargah Bruhan Shah Wali and Kabrastan and Eidgah are three distinct religious institutions having independent entities. The defendants have made out a case and this point needs to be answered in their favour.

34. Point No. (6) :

Limitation

Learned senior counsel Mr. Sapkal has adverted my attention to the findings recorded on the issue Nos. 10 and 11 in judgment of Waqf Suit No. 23 of 2005. The plea of adverse possession is negatived by the Tribunal. It is rightly contended by the learned senior counsel that the ingredients of plea of adverse possession have not been satisfied. The defendant – Municipal Council cannot be said to be the owner of the suit land. Learned senior counsel Mr. Sapkal adverts my attention to the judgment of the Supreme Court in the matter of T. Anjanappa and others Vs. Somlingappa reported in (2006) 7 SCC 573. The concept of adverse possession has been explained by the Apex Court in para No. 12 and onwards. The finding recorded to issue

No. 10 is right and needs no interference.

35. The finding that the suit is barred by limitation is unsustainable. The limitation is governed by Article 65 of the Limitation Act. The publication of the notification in Gazette on 02.05.1974 cannot be said to be the starting point of twelve years limitation. It is not disclosed as to when the possession of the respective defendants became adverse to the plaintiffs. The period of limitation would reckon from the date when possession becomes adverse. The findings in this regard are unsustainable. I answer this point in favour of the plaintiffs.

36. Point Nos. (4) and (5)

Parties have rival claims to protect the possession. On both sides numerous documents are filed on record. Those documents show that respective defendants are in possession of parcels of Sy. No. 636 since many years. Interestingly it is not a possession of individual but that of educational institutions, M. S. E. B., gymnasium, hospital, municipal council, etc. They have tangible material to show as to how they are inducted in the allotted premises. Having answered point Nos. 1 to 3 against the plaintiffs, it is not necessary to examine as to whether the defendants have encroached upon the suit lands or they are lawfully inducted in it. Unless it is proved by the plaintiffs that suit lands are the properties of registered waqf and they are mutawalies, their right to sue is under cloud. The defendants are in possession since decades and they have carried out multiple

constructions and developmental activities in the allotted portion. They cannot be evicted without following due procedure of law.

37. The upshot of the above discussion is that there exists two registered waqf namely Dargah Burhan Shah Wali and Kabrastan and Eidgah. The location of Dargah, Eidgah and Kabrastan is unclear. Dargah Hazrat Burhan Ali Shah and Dargah Burhan Shah Wali are distinct religious institutions. There is uncertainty as to whether the suit lands belong to Durgah Hazrat Burhan Ali Shah. The encroached portion of the respective defendants has not been identified.

38. When the matter was before the Tribunal in none of the suits recourse of Order XXVI Rule 9 of the Code of Civil Procedure (for the sake of brevity and convenience hereinafter referred as to the “C. P. C.”) was taken. The maps are referred in the impugned judgment, but those are not being prepared by the competent authorities for the purposes of the identification of the properties involved. Couple of them are borrowed from previous proceedings. Those do not depict current picture. Role of the defendant – board is dicey.

39. Before passing any drastic orders of possession, it is necessary to identify the suit properties, exact area of encroachment and the status of the religious institutions. This Court cannot be oblivious of the fact that there are permanent

constructions made by the defendants and the huge stakes are involved. There would be repercussions on public exchequer. In the absence of any objective scrutiny, it is wholly unjustifiable to pass decree of eviction. I find that threadbare objective scrutiny is required by remanding the suits to the Tribunal.

40. Learned advocate Mr. Deshmukh has relied upon the judgment of the Apex Court in **S. V. Cheriya Koya Thangal Vs. S. V. P. Pookoya and others in Civil Appeal No. 4629 of 2024 dt. 02.04.2024** to buttress that the board is the competent authority to determine as to who would be mutawali. I am fortified in observing that in the case at hand the defendant board failed to discharge the statutory functions. Further reliance is placed on the judgment in Bhudev Mallick @ Bhudeb Mallick and another Vs. Ranajit Ghoshal and others reported in *2025 SCC OnLine SC 360*. I have gone through para Nos. 53 to 58, which lays down the contours of error of jurisdiction. In the present case tribunal committed error of jurisdiction and failed to exercise the jurisdiction in identifying the encroached portion and entitlement of the plaintiffs.

41. Learned A. G. P Mr. Jahagirdar has relied upon the judgment of the Apex Court in the matter of Anathula Sudhakar Vs. P. Buchi Reddy (Dead) by L.Rs. and others reported in *(2008) 4 SCC 594* and various other judgments on the merits of the matter. As this Court proposes to remand the matters to the tribunal it would be open to the parties to cite the judgments before the Tribunal. It

is not necessary to consider these judgments at this stage.

42. Hence I pass following order.

O R D E R

- (A) All civil revision applications are allowed partly.
- (B) Impugned judgment and decree passed by the Tribunal in Waqf Suit No. 69 of 2011, Waqf Suit No. 24 of 2004, Waqf Suit No. 23 of 2004, Waqf Suit No. 43 of 2004, Waqf Suit No.25 of 2004 and Waqf Suit No. 22 of 2004 are quashed and set aside and suits are remanded to the Waqf Tribunal.
- (C) Waqf Tribunal shall decide above referred suits afresh and on their own merits after extending an opportunity of hearing and adducing of evidence.
- (D) Suits shall be decide as expeditiously as possible and in any case not more than 18 (eighteen) months from the date of appearance of the parties.
- (E) Parties shall appear before the Waqf Tribunal, Aurangabad on 20.04.2026.
- (F) The respondents – defendants shall cooperate for expeditious disposal of the suits and any lapses on their

part shall invite action U/O XXXIX Rule 11 of the C. P. C.
(High Court Amendment).

(G) There shall be no order as to costs.

[SHAILESH P. BRAHME J.]

bsb/April 26